

25CHCV02756 25CHCV02756

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-09-14

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PLAINTIFF'S MOTION FOR DEFAULT JUDGMENT AND MOTION FOR
ATTORNEY FEES

Motions filed on June 4, 2026.

MOVING PARTY: Jasmine Cuevas (Plaintiff)

RESPONDING PARTY: Maria Cuevas and Roy Cuevas (Defendants)

NOTICE: OK.

RELIEF REQUESTED: Plaintiff seeks entry of default judgment
against Defendants and an award of attorney fees.

RULING: Both motions are denied without prejudice.

BACKGROUND/DISCUSSION

On August 1, 2025, Plaintiff filed the Complaint. On August
27, 2025, Plaintiff filed the Verified First Amended Complaint alleging causes
of action for breach of fiduciary duty, aiding and abetting breach of fiduciary
duty, conversion, declaratory judgment, and quiet title. On January 20, 2026,

default was entered against Defendants on the First Amended Complaint. On June 4, 2026, Plaintiff filed the Motion for Default Judgment and Motion for Attorney Fees with supporting memoranda and declarations. On September 4, 2026, Plaintiff filed notices of non-opposition.

California Rules of Court, rule 3.1800(a) requires a party seeking default judgment on declarations to use the mandatory Request for Entry of Default (Application to Enter Default) (form CIV-100). Rule 3.1800(a)(6) also requires a proposed form of judgment.

Here, Plaintiff did not file a CIV-100 requesting court judgment and did not submit a proposed form of judgment. The Motion for Default Judgment is therefore denied without prejudice. Because default judgment is not being entered, Plaintiff's Motion for Attorney Fees is premature at this time and is denied without prejudice. Any renewed request for default judgment shall comply with rule 3.1800, including submission of a completed CIV-100 requesting court judgment and a proposed form of judgment.

CONCLUSION

The Motion for Default Judgment is denied without prejudice.

The Motion for Attorney Fees is denied without prejudice as premature.